

	2020-01140898	
11	Coffey vs. Newport Dunes Resort and Marina 2020-01175786	Motion for Summary Judgment and/or Adjudication Defendants Terra Vista Management and Newport Dunes Marina, LLC's motion or summary judgment, or in the alternative, summary adjudication as to the complaint of Clifford Coffey is DENIED in its entirety. Defendants have not met their initial burden of proof showing the alleged defective condition of the property on the day of the accident was "open and obvious" as a matter of law. That question is for the jury to decide. Defendants' objections to the declaration of Clifford Coffey are overruled. The objections to portions of the plaintiff's response to the Separate Statement are overruled. Moving Party shall give notice